

PART 3.2 - TERMS OF REFERENCE AND FUNCTIONS OF COMMITTEES

The Council has established Policy Committees and Regulatory Committees. Each committee has delegated authority from Full Council to undertake all responsibilities and actions falling within its terms of reference as set out in this part of the Council's Constitution.

A. POLICY COMMITTEES

Terms of Reference of Policy Committees

All Policy Committees will have the following Terms of Reference:

1. To deliver its functions in accordance with the Corporate Plan and any other plan or strategy approved by Full Council;
2. To take decisions above the financial threshold of £500,000 for decisions of Policy Committees and in accordance with the Council's approved budget and policy framework and decisions that are significant in terms of its effects on communities living or working in two or more wards in the city;
3. To consider matters that are referred to the Committee by the Chair of the Committee or which are escalated to the Committee;
4. To develop and agree strategies, policies and plans in respect of the areas of responsibility of the Committee;
5. To approve fees and charges;
6. To exercise statutory scrutiny functions through the appropriate Policy Committee, or Sub-Committee established for that purpose (health, flood risk management and crime and disorder);
7. To review risk management, financial management and performance reports from service areas within the areas of responsibility of the Committee;
8. To establish Sub-Committees and delegate functions to them;
9. To conduct task and finish activities to consider policy development matters. It is recommended that this be two per Policy Committee per municipal year;
10. To foster relationships with residents, businesses and stakeholders within the city and encourage them to participate in the Council's democratic processes.

Policy Committees carrying out Policy development

11. Where a Policy Committee is carrying out Policy development it will do so in accordance with the following principles:
12. Policy development will be carried out within the framework of the Council strategic

priorities as set out in the Council's Corporate Plan

13. Policy development will consider the Council Budget and Policy Framework and review of their impact on service delivery and outcomes for people in Bristol.
14. Consider 'city-wide issues' (and where appropriate sub regional, regional and national issues), in particular through collaborative work with local partner authorities, providers, stakeholders and members of the public.
15. Consider organisational performance (ICT, legal, financial and HR services) and commission performance reviews

Functions of the Policy Committees

The Council has established Policy Committees and they are responsible for the following functions.

Adult Social Care Committee

The Adult Social Care Committee will be responsible for the following functions:

- Adult Social Care
- Safeguarding Adults (including safeguarding boards)
- Age Friendly City
- Better Lives Programme
- Family or Friend Carers
- Ethical Care Council
- Adaptable homes and Intergenerational housing
- Integrated Care System
- Departmental performance, budget and risk

Homes and Housing Delivery Committee

The Homes and Housing Delivery Committee will be responsible for the following functions:

- Housing delivery and Innovation
- Social housing and support services
- Landlord services
- Homelessness
- Home-choice
- Self builds
- Estate renewal
- Private rented sector
- Living Rent City
- Housing Strategy and Project 1000
- Retro fit sustainability of homes - carbon and waste
- Modern methods of construction
- Departmental performance, budget and risk

Public Health and Communities Committee

The Public Health and Communities Committee will be responsible for the following functions:

- Public Health including Mental Health Services and Health Partnerships
- Preventative Services
- Sport and Leisure
- Commissioning (Health)
- Domestic violence and abuse
- Community Safety, Community Cohesion and Safer Bristol Partnership
- Community Engagement and development
- Transferred community assets
- Community Safety, Community Cohesion and Safer Bristol Partnership
- Voluntary and Community Services and Community initiatives
- Libraries
- Parks and Green Spaces
- Events and Carnivals
- Public protection and environmental health
- Local decision making
- Departmental performance, budget and risk

Economy and Skills Committee

The Economy and Skills Committee will be responsible for the following functions:

- Development of regional planning Strategy (including Spatial Development Strategy)
- Cross border responsibility for joint spatial planning
- Delivery of renewed Local Plan
- City resilience (delivery of City Resilience Strategy) and contingency
- The Harbour
- Flooding and flood strategy
- Development management
- Civil Contingency Planning - planning and control
- Apprenticeships, training and work experience
- Lifelong learning
- City Economy
- City Policy, Strategic Planning and Communications, Council Plan
- University Development and Student Accommodation
- Major development schemes
- Land and property allocated for housing development
- Departmental performance, budget and risk

Strategy and Resources Committee

The Strategy and Resources Committee will be responsible for the following functions:

- Finance and Budgets (including corporate finance)
- Legal and statutory services

- Corporate services
- Performance
- Council owned Companies and Innovation
- Culture
- Council's assets and Property Board
- Commercialisation
- External Relations
- Devolution
- City Office and Bristol One City Plan
- United Nations (UN) Sustainable Development Goals
- City Funds
- Equalities
- Democratic Engagement
- Equality Commissions and Women's Safe City
- Departmental performance, budget and risk

Children and Young People Committee

The Children and Young People Committee will be responsible for the following functions:

- Children's Social Care
- Corporate Parenting, Fostering and Adoption
- Children and families support services
- Youth Services
- Children's Centres and Pre-School
- Safeguarding Children (including safeguarding boards)
- Schools and Partnerships
- Further education
- Family and Child Friendly City
- Educational Catch up plan – NEETs (not in Education, employment or training)
- Diversification of teaching work force
- New schools and school places
- School exclusions
- School streets project
- Special Educational Needs and Disability (SEND)
- Personal, Social, Health and Economic education (PSHE)
- Departmental performance, budget and risk

Transport and Connectivity Committee

The Transport and Connectivity Committee will be responsible for the following functions:

- Transport Policy
- Transport Maintenance
- Major Transport Projects
- Local Joint Transport Plan
- Major Projects
- Capital Programme (delivery)
- Departmental performance, budget and risk

Environment and Sustainability Committee

The Environment and Sustainability Committee will be responsible for the following functions:

- Climate Emergency Strategy delivery
- Ecological Emergency Strategy delivery
- Waste and Recycling Strategy delivery
- Clean Streets Campaign and street cleansing
- Energy, Heat Networks and City Leap
- Carbon neutrality and Green New Deal
- Air Quality and Clean Air Plan
- Departmental performance, budget and risk

Finance Sub-committee

A standing Finance Sub-committee will be established as a sub-committee of the Strategy and Resources Committee. It will support the development of the Council's annual budget which will be presented to the Strategy and Resources Committee and then Full Council for approval. There will remain a need for private Task and Finish meetings to take place as part of the formal budget development cycle. These arrangements will be reflected in the Budget and Policy Framework Procedure Rules.

Health Scrutiny Sub-committee

A Health Scrutiny Sub-committee will be established as a Sub-committee of the Public Health and Communities Committee. It will be responsible for the exercise of the statutory scrutiny functions under sections 244 and 245 of the National Health Service Act 2006 and the Local Authority (Public Health, Health and Wellbeing Boards and Health Scrutiny) Regulations 2013.

B. JOINT HEALTH SCRUTINY COMMITTEE

Terms of Reference

Functions

1. Where more than one local authority is consulted by a local NHS body in respect of any proposal, which it has under consideration for the substantial development of the health service or the substantial variation of such service, to review and scrutinise such proposal jointly with any other local authority so consulted.
2. Where a matter is referred to it by Healthwatch to consider whether to exercise any powers in relation to the matter, taking into account information supplied by Healthwatch.
3. Where more than one local authority has an interest in the planning, provision and operation of health services which cross geographical boundaries, to review and scrutinise any such matters jointly with any such other local authority.
4. To require the local NHS body to provide information about the proposal under consideration and where appropriate to require the attendance of a representative of the NHS body to answer such questions as appear to it to be necessary for the discharge of its function in connection with the consultation.
5. To prepare a report to the health body and the participating local authorities, setting out any comments and recommendations on any matter reviewed or scrutinised.
6. To report to the Secretary of State in writing where it is not satisfied that consultation on any proposal referred to in paragraph (1) has been adequate in relation to the content or time allowed.
7. To report to the Secretary of State in writing in any case where it considers that the proposal referred to in paragraph 1 above would not be in the interests of the health service in the area of the Joint Committees participating local authorities.

C. TERMS OF REFERENCE OF THE WEST OF ENGLAND COMBINED AUTHORITY OVERVIEW AND SCRUTINY COMMITTEE (“THE WECA OVERVIEW AND SCRUTINY COMMITTEE”)

The functions of the Overview and Scrutiny Committee primarily relate to scrutinising the work of the WECA and making appropriate recommendations as to the discharge of its function.

The WECA Overview and Scrutiny Committee shall have the power to:-

1. Review or scrutinise decisions made or other actions taken, in connection with the discharge of any functions which are the responsibility of the WECA;
2. Make reports or recommendations to the WECA on matters that affect the WECA area or the inhabitants of the area;
3. Make reports or recommendations to the WECA with respect to the discharge of any functions which are the responsibility of the WECA.
4. In so far as the business of the Local Enterprise Partnership Business Board (LEP) relates to the discharge of functions of the WECA, the WECA Overview and Scrutiny Committee shall have the power to scrutinise the LEP as set out in (i) – (iii) above.

Save for the provision in Section A – Standing Orders (Descriptions and Rules of Procedure), that can only apply to a meeting of the West of England Combined Authority, the rules of procedure will apply to meetings of the Overview and Scrutiny.

D. JOINT OVERVIEW AND SCRUTINY ARRANGEMENT

Terms of Reference of the Joint Overview and Scrutiny Arrangement comprising of the Constituent Councils of the West of England Combined Authority, the Mayor and North Somerset Council (“The Joint Overview and Scrutiny Arrangement”)

Joint Overview and Scrutiny shall have the power to:-

1. Review or scrutinise decisions made or other actions taken, in connection with the discharge of any functions which are the responsibility of the Joint Committee;
2. Make reports or recommendations to the Joint Committee on matters that affect the Joint Committee area or the inhabitants of the area;
3. Make reports or recommendations to the Joint Committee with respect to the discharge of any functions which are the responsibility of the Joint Committee.

Save for the provision in Section A – Standing Orders (Descriptions and Rules of Procedure), that can only apply to a meeting of the West of England Combined Authority; the rules of procedure will apply to meetings of the Voluntary Joint Scrutiny Arrangement.

E. HARBOUR COMMITTEE TERMS OF REFERENCE

1. Purpose

To determine all matters relating to the strategic management of the Council's function as a Statutory Harbour Authority, and consistent with the Council's Policy Framework. Specifically the Committee will:-

- 1.1 Manage the Harbour (Portishead and Bristol City Docks) in accordance with the provisions of the Harbours Act 1964, the Bristol City Docks and Portishead Pier Acts and Orders 1807 to 1998 and the Harbour Docks and Piers Clauses Act 1847 (as incorporated), as amended from time to time (the 'Harbour Legislation'), the Ports Good Governance Guidance, the Ports and Marine Facilities Code and the best interests of harbour undertaking.
- 1.2 Manage the Harbour's financial matters in accordance with the Council's approved financial procedures, approved harbour budget and the Council's objective for the Harbour to be financially self-sustainable, including (but not limited to):
 - 1.2.1 the setting of harbour fees and charges from time to time (including in-year changes to the schedule);
 - 1.2.2 providing the annual revenue budgets within the ring-fenced harbour accounts;
 - 1.2.3 receiving quarterly budget monitoring reports and to approve variances as appropriate; and
 - 1.2.4 monitoring the harbour reserve funds.
- 1.3 The Harbour Committee will have authority to make a Key Decisions that are in line with the approved harbour budget and any relevant harbour strategies, plans and policies.
- 1.4 The role of Duty Holder (See Annex 1) for the purposes of the Ports and Marine Facilities Safety Code will be the Chair of the Harbour Committee. Accountability for this role cannot be assigned or delegated.
- 1.5 Review these terms of reference as required and request the Council to make any necessary amendments and/or additions.

2. Membership

- 2.1 The Harbour Committee will comprise eleven members (12), eight (8) members will be Elected Members who will be appointed by the Council and four (4) non-elected member/advisors will be co-opted onto the Committee following an appointment process to assess the skills and expertise that they can bring to the Committee on a three-year term.
- 2.2 The Chair and the Vice Chair shall be elected members of the Council.
- 2.3 All members of the Harbour Committee will have voting rights.
- 2.4 All members of the Committee shall abide by the Council's Code of Conduct for Elected Members;

- 2.5 All members to understand the role of the Duty Holder.
- 2.6 Co-opted members will serve the Committee for three-year terms. Each will be selected on the basis of being able to provide relevant expert advice to the Harbour Committee.
- 2.7 A co-opted member may be appointed to a second three-year term without recourse to open competition, subject to the agreement of both the Chair and the co-opted member, and the Committee's assessment that the co-optee has performed satisfactorily during the first term.

3. Meetings

- 3.1 The Committee shall meet at least 4 times a year and be governed by Council's Committee Procedure Rules as set out in the Council's Constitution.
- 3.2 The quorum for meetings of the Committee shall be 5 save that there must also always be a majority of elected members present at the meeting.
- 3.3 The Committee shall consider the following business:
 - 3.3.1 approval of the Minutes of the previous meeting;
 - 3.3.2. declarations of Interest, if any;
 - 3.3.3. report and feedback from any Stakeholder Forum(s);
 - 3.3.4. the business as set out on the agenda for the meeting.

Annex 1: The Duty Holder

1. All organisations must have a Duty Holder which is accountable for compliance with the Code.
2. The Duty Holder may be different depending on the size, duties and responsibilities of an organisation. For larger organisations, the Duty Holder is likely to be members of the management team or board who are, both individually and collectively, accountable for marine safety. However, if accountability or decision-making powers of these bodies is limited, such as in a municipal port where safety is overseen by a local authority committee, it is acceptable for the role to reside elsewhere. For smaller organisations, which may not have such formal structures, the role may be performed by an individual.
3. Given these differences, organisations should publish information explaining who their Duty Holder is and how they can be contacted.
4. The duty holder is responsible for ensuring that the organisation complies with the relevant parts of the Code. In order to effectively undertake this role, they should:
 - (a) be aware of the organisation's powers, duties and responsibilities related to marine safety;
 - (b) ensure that a suitable MSMS, which employs formal safety assessment techniques, is in place;
 - (c) appoint a suitable designated person to monitor and report the effectiveness of the MSMS and provide independent advice on matters of marine safety;
 - (d) appoint competent people to manage marine safety;
 - (e) ensure that appropriate resources are made available for discharging their marine safety obligations;
 - (f) ensure that the management of marine safety continuously improves by publishing a marine safety plan and reporting performance against the objectives and targets set; and
 - (g) report on the organisation's compliance with the relevant parts of the Code to the MCA every 3 years.
5. Some organisations will have the power to appoint a harbour master and may entrust the operation of their facilities to such professionals. However, the duty holder cannot assign or delegate its accountability for compliance with the Code.
6. The duty holder should take time to gain an appropriate insight and understanding of their organisation's marine activities, MSMS and supporting policies and procedures. This can be accommodated through briefings and operational visits. If the organisation has a board, consideration should be given to appointing a board member who has relevant maritime experience and who can act as the initial point of contact for the designated person.

7. The duty holder should also be aware of any other specific powers and duties which the organisation may have such as:

- powers to direct vessels to support safe navigation;
- dangerous vessels and dangerous substances (including pollution) which must be effectively managed;
- provision of a pilotage service if required in the interests of safety; and
- any responsibilities as a local lighthouse authority including provision and proper maintenance of aids to navigation and management of any danger to navigation.

Glossary of associated terms

MCA	Maritime and Coastguard Agency
MSMS	Marine Safety Management System
PMSC	Ports and Marine Facilities Safety Code

F. DOWNS COMMITTEE

The Downs Committee was created by The Clifton and Durdham Downs (Bristol) Act 1861 (the ‘Downs Act’) in order to manage the Downs. It is chaired by the Lord Mayor and six councillors are appointed to the committee each year.

G. REGULATORY COMMITTEES:

G.1 PLANNING COMMITTEES¹

Terms of Reference

Arrangements

There are two Planning Committees:

- **Planning Committee “A”**
- **Planning Committee “B”**

Each Planning Committee shall have full authority to deal with all development control (planning) matters reserved to a Planning Committee by virtue of this consultation.

Functions

Full Council has delegated to the Planning Committees all functions relating to town and country planning and development control as specified in Regulation 2 and Schedule 1 to the Local Authorities (Functions and Responsibilities) (England) Regulations 2000 (as amended) under the following provisions and any related secondary legislation:

¹ Previously Development Control Committees

1. Power to determine applications for planning permission (section 70(1) (a) and (b) and 72 of the Town and Country Planning Act 1990 (c.8)).
2. Power to determine applications to develop land without compliance with conditions previously attached (section 73 of the Town and Country Planning Act 1990).
3. Power to grant planning permission for development already carried out (section 73(A) of the Town and Country Planning Act 1990).
4. Power to decline to determine application for planning permission (section 70A of the Town and Country Planning Act 1990).
5. Duties relating to the making of determinations of planning applications (Sections 69, 76 and 92) of the Town and Country Planning Act 1990 and Articles 8, 10 to 13, 15 to 22 and 25 and 26 of the Town and Country Planning (General Development Procedure Order 1995) (S.I. 1995/419 and directions made thereunder).
6. Power to determine application for planning permission made by a local authority, alone, or jointly with another person (section 316 of the Town and Country Planning General Regulations 1992 (S.I. 1992/1492)).
7. Power to make determinations, give approvals and agree certain other matters relating to the exercise of permitted development rights (Parts 6, 7, 11, 17, 19, 20, 21 to 24, 26, 30 and 31 of Schedule 2 to the Town and Country Planning (General Permitted Development) Order 1995).
8. Power to enter into agreement regulating development or use of land (Section 106 of the Town and Country Planning Act 1990).
9. Power to issue a certificate of existing or proposed lawful use or development (Section 191(4) and 192(2) of the Town and Country Planning Act 1990).
10. Power to serve a completion notice (Section 94(2) of the Town and Country Planning Act 1990).
11. Power to grant consent for the display of advertisements (Section 220 of the Town and Country Planning (Control of Advertisements) Regulations 1992).
12. Power to authorize entry onto land (Section 196A of the Town and Country Planning Act 1990).
13. Power to require the discontinuance of a use of land (Section 102 of the Town and Country Planning Act 1990).
14. Power to serve a planning contravention notice, breach of condition notice or stop notice (Sections 171C, 187A and 183(1) of the Town and Country Planning Act 1990).
15. Power to issue a temporary stop notice (Section 171E of the Town and Country Planning Act 1990).
16. Power to issue an enforcement notice (Section 172 of the Town and Country Planning Act 1990).
17. Power to apply for an injunction restraining a breach of planning control (Section 187B of the Town and Country Planning Act 1990).
18. Power to determine applications for hazardous substances consent and related powers (Sections 9(1) and 10 of the Planning (Hazardous Substances) Act 1990 (c.10)).
19. Duty to determine conditions of which old mining permissions, relevant planning permissions relating to dormant sites or active Phase I or II sites or mineral permissions relating to mining sites, as the case may be, are to be subject (paragraph 2(6) (a) of Schedule 2 of the Planning and Compensation Act 1991, paragraph 9(6) of the Schedule 13 of the Environment Act 1995 (c.25) and paragraph 6(5) of Schedule 14 to that Act).
20. Power to require proper maintenance of land (section 215(1) of the Town and Country Planning Act 1990).

21. Power to determine application for listed building consent and related powers (sections 16(1) and (2), 17 and 33(1) of the Planning (Listed Buildings and Buildings in Conservation Areas) Act 1990 (c.9).
22. Power to issue Certificate of Lawful Works to listed buildings The Planning (Listed Buildings and Conservation Areas) Act 1990: sections 26H and 26I, as inserted by section 61 of the Enterprise and Regulatory Reform Act 2013. The Planning (Listed Buildings) (Certificates of Lawfulness of Proposed Works) Regulations 2014
23. Duties relating to applications for listed building consent and Certificates of Lawful Works and conservation area consent (sections 13(1) and 14(1) and (4) of the Planning (Listed Buildings and Conservation Areas) Act 1990 and regs 3 to 6 and 13 of the Planning (Listed Buildings and Conservation Areas) Regulations 1990 S.I. 1990/1519) and paragraphs 8, 15 and 26 of the Department of Environmental, Transport and the Regions circular 01/01).
24. Power to serve a building preservation notice and related powers (sections 3(1) and 4(1) of the Planning (Listed Buildings and Buildings in Conservation Areas) Act 1990.
25. Power to issue enforcement notice in relation to demolition of listed building in conservation area (section 38 of the Planning (Listed Buildings and Conservation Areas) Act 1990).
26. Powers to acquire a listed building in need of repair and to serve a repairs notice (section 47 and 48 of the Planning (Listed Buildings and Conservation Areas) Act 1990).
27. Power to apply for an injunction in relation to a listed building (section 44A of the Planning (Listed Buildings and Conservation Areas) Act 1990).
28. Power to execute urgent works to unoccupied listed buildings (section 54 of the Planning (Listed Buildings and Conservation Areas) Act 1990).
29. Power to authorize stopping up or diversion of highway (section 247 of the Town and Country Planning Act 1990).
30. Power to authorise stopping-up or diversion of footpath, bridleway or restricted byway (section 257 of the Town and Country Planning Act 1990).
31. Power to extinguish public rights of way over land held for planning purposes (Section 258 of the Town and Country Planning Act 1990).
32. Powers relating to the protection of important hedgerows (the Hedgerows Regulations 1997 (S.I. 1997/1160).
33. Powers relating to the preservation of trees (sections 197 to 214D of the Town and Country Planning Act 1990 and the Trees Regulations 1990 (S.I. 1999/1892)).
34. Powers relating to complaints about high hedges (Part 8 of the Anti-Social Behaviour Act 2003).
35. Power to include modifications in other orders (Section 53A of the Wildlife and Countryside Act 1981).
36. Power to revoke or modify planning permission (Section 97 Town and Country Planning Act 1990).
37. Duty to enter land in Part 2 of the brownfield land register (Regulation 3 of the Town and Country Planning (Brownfield Land Register) Regulations 2017).
38. The making of Local Development Orders under Article 38 of the Town and Country Planning (Development Management Procedure) (England) Order 2015.
39. Power to exercise functions relating to Nationally Significant Infrastructure Projects and Development Consent Orders as contained in the Planning Act 2008.
40. The making of Local Listed Building Consent Orders under Sections 26D-G, 28A and Schedule 2A of the Planning (Listed Buildings and Conservation Areas) Act 1990 and the Planning (Local Listed Building Consent Orders) (Procedure) Regulations 2014 (S.I. 2014/551)

Code of Conduct

The committee must follow the Council's Code of Conduct for Councillors and Officers dealing with development control and other appropriate planning matters (in part 5 of the constitution).

G.2 PUBLIC SAFETY AND PROTECTION COMMITTEE

Terms of Reference

Functions

Full Council has delegated to the Public Safety and Protection Committee all functions relating to public safety and protection as specified in Regulation 2 and Schedule 1 to the Local Authorities (Functions and Responsibilities) (England) Regulations 2000 (as amended) under the following provisions and any related secondary legislation:

1. Power to license Hackney carriages and private hire vehicles ((a) as to Hackney carriages, the Town Police Clauses Act 1847 (10 and 11 Vict. c. 89) as extended by section 171 of the Public Health Act 1875 (38 and 39 Vict. c. 55) and section 15 of the Transport Act 1985 (c.67); and sections 47, 57, 58, 60 and 79 of the Local Government (Misc. Provisions) Act 1976 (c.57); (b) as to private hire vehicles, sections 48, 57, 68, 60 and 79 of the Local Government (Misc. Provisions) Act 1976).
2. Power to license drivers of Hackney carriages and private hire vehicles (sections 51, 53, 54, 59, 61 and 79 of the Local Government (Misc. Provisions) Act 1976).
3. Power to license operators of Hackney carriages and private hire vehicles (sections 55 to 58, 62 and 79 of the Local Government (Misc. Provisions) Act 1976).
4. Power to register pool promoters (Schedule 2 to the Betting, Gaming and Lotteries Act 1963 as saved for certain purposes by article 3(3)(c) of the Gambling Act 2005 (Commencement No. 6 and Transitional Provisions Order 2006 (S.I. 2006/3272) ("the Gambling Order"))).
5. Power to grant track betting licences (Schedule 3 to the Betting, Gaming and Lotteries Act 1963 as saved for certain purposes by article 3(3) of the Gambling Order Act 2005).
6. Power to license inter-track betting schemes (Schedules 5ZA to the Betting, Gaming and Lotteries Act 1963 as saved for certain purposes by article 3(3) of the Gambling Order Act 2005).
7. Power to grant permits in respect of premises with amusement machines (Schedule 9 to the Gaming Act 1968 as saved for certain purposes by article 3(3) of the Gambling Order Act 2005).
8. Power to register societies wishing to promote lotteries (Schedule 1 to the Lotteries and Amusements Act 1976 as saved for certain purposes by article 3(3) of the Gambling Order Act 2005).
9. Power to grant permits in respect of premises where amusements with prizes are provided (Schedule 3 to the Lotteries and Amusements Act 1976 as saved for certain purposes by article 3(3) of the Gambling Order Act 2005).
10. Power to issue cinema and cinema club licences (section 1 of the Cinema Act 1985 (c.13)).
11. Power to issue theatre licences (sections 12 to 14 of the Theatres Act 1968 (c.54)).
12. Power to issue entertainments licences (section 12 of the Children and Young Persons Act 1933 (c.12), section 52 of, and Schedule 12 to, the London Government Act 1963

- (c.33), section 79 of the Licensing Act 1964 (c.26), sections 1 to 5 and 7 of, and Entertainment (Licensing) Act 1967 (c.19) and Part I of, and Schedules 1 and 2 to, the Local Government (Misc. Provisions) Act 1982).
13. Power to license performances of hypnotism (the Hypnotism Act 1952 (c.46)).
 14. Power to license pleasure boats and pleasure vessels (Section 94 of the Public Health Acts Amendment Act 1907 (c.53)).
 15. Power to license market and street trading (Part III of, and Schedule 4 to, the Local Government (Misc. Provisions) Act 1982, Part III of the London Local Authorities Act 1990 (c.viii) and section 6 of the London Authorities Act 1994 (c.xii).
 16. Power to license scrap yards (section 1 of the Scrap Metal Dealers Act 1964 (c.69)).
 17. Power to license persons to collect for charitable and other causes (section 5 of the Police, Factories etc. (Misc. Provisions) Act 1916 (c.31) and s.2 of the House to House Collections Act 1939 (c.44)).
 18. Power to sanction use of parts of buildings for storage of celluloid (section 1 of the Celluloid and Cinematograph Film Act 1922 (c.25)).
 19. Power to register motor salvage operations (Part 1 of the Vehicles (Crime) Act 2001).
 20. Power to issue licences authorising the use of land as a caravan site ("site licences") (Section 3(3) of the Caravan Sites and Control of Development Act 1960 (c.62)).
 21. Power to license the use of moveable dwellings and camping sites (section 269(1) of the Public Health Act 1936) (c.49).
 22. Power to enforce offences to the display of no-smoking signs (section 6(5) of the Health Act 2006 ("the 2006 Act").
 23. Power to enforce offences relating to smoking in smoke-free places (section 7(4) of the 2006 Act).
 24. Power to enforce offences of failing to prevent smoking in smoke-free places (section 8(4) of the 2006 Act).
 25. Power to enforce offences of failing to prevent smoking in smoke-free places (section 8(4) of the 2006 Act).
 26. Power to transfer enforcement functions to another enforcement authority (Smoke-free (Premises and Enforcement) Regulations 2006 (S.I. 2006/3368)).
 27. Power to license premises for acupuncture, tattooing, ear piercing and electrolysis (section 13 to 17 of the Local Government (Misc. Provisions) Act 1982).
 28. Powers to license night cafes and take-away food shops (section 2 of the Late Night Refreshment Houses Act 1969 (c.53), Part II of the London Local Authorities Act 1990 and section 5 of the London Local Authorities Act 1994).
 29. Duty to keep list of persons entitled to sell non-medicinal poisons (sections 3(1) (b)(ii), 5, 6 and 11 of the Poisons Act 1972 (c.66)).
 30. Power to license dealers in game and the killing and selling of game (sections 5, 6, 17, 18 and 21 to 23 of the Game Act 1831 (c.32); s.2 to 16 of the Game Licensing Act 1860 (c.90), s.4 of the Customs and Inland Revenue Act 1883 (c.10), section 12(3) and 27 of the Local Government Act 1874 (c.73), and section 213 of the Local Government Act 1972 (c.70)).
 31. Power to register and license premises for the preparation of food (section 19 of the Food Safety Act 1990 (c.16)).
 32. Power to issue, amend or replace safety certificates (whether general or special) for sports grounds (the Safety of Sports Grounds Act 1975 (c.52)).
 33. Power to issue, cancel, amend or replace safety certificates for regulated stands at sports grounds (Part III of the Fire Safety and Safety of Places of Sports Act 1987 (c.27)).
 34. Power to issue fire certificates (section 5 of the Fire Precautions Act 1971 (c.40)).

35. Power to license premises for the breeding of dogs (section 1 of the Breeding of Dogs Act 1973 (c.60) and section 1 of the Breeding and Sale of Dogs (Welfare) Act 1999 (c.11)).
36. Power to license pet shops and other establishments where animals are bred or kept for the purposes of carrying on a business (section 1 of the Pet Animals Act 1951 (c.35); section 1 of Animal Boarding Establishments Act 1963 (c.43); the Riding Establishments Acts 1964 and 1970 (1964 c70 and 1970 c70); s.1 of the Breeding of Dogs Act 1973 (c.60) and subsection 1 and 8 of the Breeding and Sale of Dogs (Welfare) Act 1999).
37. Power to register animal trainers and exhibitors (section 1 of the Performing Animals (Regulation) Act 1925 (c.38)).
38. Power to license zoos (section 1 of the Zoo Licensing Act 1981 (c.37)).
39. Power to license dangerous wild animals (section 1 of the Dangerous Wild Animals Act 1976 (c.38)).
40. Power to license knackers' yards (Section 4 of the Slaughterhouses Act 1974 see also the Animal By-Products Order 1999 (S.I. 1999/646)).
41. Power to license the employment of children (Part II – Children and Young Persons Act 1933 (c.33), bylaws made under that Part and Part II – Children and Young Persons Act 1963 (c.37)).
42. Power to grant consent for the operation of loudspeaker (Schedule 2 to the Noise and Statutory Nuisance Act 1993 (c.40)).
43. Power to license agencies for the supply of nurses (Section 2 of the Nurses Agencies ~Act 1957 (c.16)).
44. Power to issue licences for the movement of pigs (Article 12 o the Pigs (Records, Identification and Movement) Order 1995 (S.I. 1995/11)).
45. Power to license the sale of pigs (Article 13 of the Pigs (Records, Identification and Movement) Order 1995).
46. Power to license collecting centres for the movement of pigs (Article 14 of the Pigs (Records, Identification and Movement) Order 1995).
47. Power to issue a licence to move cattle from a market (Article 5(2) of the Cattle Identification Regulations 1998 (S.I. 1998/871)).
48. Power to approve meat product premises (Regulations 4 and 5 of the Mead Products (Hygiene) Regulations 1994 (S.I. 1994/3082).
49. Power to approve premises for the production of minced meat or meat preparations (Regulation 4 of the Minced Meat and Meat Preparations (Hygiene) Regulations 1995 (S.I. 1995/3205)).
50. Power to approve dairy establishments (regulations 6 and 7 of the Dairy Products (Hygiene) Regulations 1995 (S.I. 1995/1086)).
51. Power to approve egg product establishments (regulation 5 of the Egg Products Regulations 1993 (S.I. 1993/1520)).
52. Power to issue licences to retail butchers' shops carrying out commercial operations in relation to unwrapped raw meat and selling or supplying both raw meat and ready-to-eat foods (Schedule 1A to the Food Safety (General Food Hygiene) Regulations 1995 (S.I. 1995/1763)).
53. Power to approve fish products premises (regulation 24 of the Food Safety (Fishery Products and Live Shellfish) (Hygiene) Regulations 1998 (S.I. 1998/994)).
54. Power to approve dispatch or purification centres (regulation 11 of the Food Safety (Fishery Products and Live Shellfish) (Hygiene) Regulations 1998).
55. Power to register fishing vessels on board which shrimps or molluscs are cooked (Regulation 21 of the Food Safety (Fishery Products and Live Shellfish) (Hygiene) Regulations 1998).

56. Power to approve factory vessels and fishery product establishments (regulation 24 of the Food Safety (Fishery Products and Shellfish) (Hygiene) Regulations 1998).
57. Power to register auction and wholesale markets (regulation 26 of the Food Safety (Fishery Products and Live Shellfish) (Hygiene) Regulations 1998).
58. Duty to keep register of food business premises (regulation 5 of the Food Premises (Registration) Regulations 1991 (S.I. 1991/2828)).
59. Power to register food business premises (regulation 9 of the Food Premises (Registration) Regulations 1991).
60. Functions under any of the “relevant statutory provisions” within the meaning of Part 1 (health, safety and welfare in connection with work and control of dangerous substances) of the Health and Safety at Work Act 1974 to the extent that those functions are discharged otherwise than in the authority’s capacity as an employer (part 1 of the Health and Safety at Work etc. Act 1974 (c.37)).
61. Functions relating to sea fisheries (sections 1, 2, 10 and 19 of the Sea Fisheries Regulation Act 1966 (c.38)).
62. Power to make closing order with respect to take-away food shops (Section 4 of the Local Government (Misc. Provisions) Act 1982 (c.30)).

Code of Conduct

The Constitution contains a supplement to the members’ code of conduct which deals with the role of elected members in relation to public safety and protection committee hearings (see part 5 of the constitution).

G.3 PUBLIC RIGHTS OF WAY AND GREENS COMMITTEE

Terms of Reference

Functions

Full Council has delegated to the Public Rights of Way and Greens Committee all functions relating to public rights of way and greens are as specified in Regulation 2 and Schedule 1 to the Local Authorities (Functions and Responsibilities) (England) Regulations 2000 (as amended) under the following provisions and any related secondary legislation:

List A

1. Functions relating to the registration of common land and town or village greens (part 1 Commons Act 2006 and the Commons Registration (England) Regulations 2008);
2. Power to register variation of rights of common (Regulation 29 of the Commons Registration (General) Regulations 1966 (S.I. 1966/1471));
3. Power to apply for an enforcement order against unlawful works on common land (Section 41 Commons Act 2006);
4. Power to protect unclaimed common land and unclaimed town and village greens against unlawful interference (Section 45(2)(a) Commons Act 2006); and
5. Power to institute proceedings for offences in respect of unclaimed registered common land or unclaimed town or village greens (Section 45(2)(b) of the Commons Act 2006).

List B

6. Power to grant a street works license (section 50 of the New Roads and Street Works Act 1991 (c.22)).
7. Power to permit deposit of builder's skip on highway (section 139 of the Highways Act 1980 (c.66) ("the Act")).
8. Duty to publish notice in respect of proposal to grant permission under section 115E of the Act (section 115E of the Act).
9. Power to license planning, retention and maintenance of trees etc. in part of highway (Section 142 of the Act).
10. Power to authorise erection of stiles etc. on footpaths or bridleways (section 147 of the Act).
11. Power to license works in relation to buildings etc. which obstruct the highway (Section 169 of the Act).
12. Power to consent to temporary deposits or excavations in streets (section 171 of the Act).
13. Power to dispense with obligation to erect hoarding or fence (section 172 of the Act).
14. Power to restrict the placing of rails, beams etc over highways (section 178 of the Act).
15. Power to consent to construction of cellars etc. under street (section 179 of the Act).
16. Power to consent to the making of openings into cellars etc. under streets and pavement lights and ventilators (section 180 of the Act).
17. Power to create footpath, bridleway or restricted byway by agreement (section 25 of the Act (C.66)).
18. Power to create footpaths, bridleways and restricted byways (section 26 of the Act).
19. Duty to keep register of information with respect to maps, statements and declarations (section 31A of the Act).
20. Power to stop up footpaths, bridleways and restricted byways (section 118 of the Act).
21. Power to determine application for public path extinguishment order (sections 118ZA and 118C (2) of the Act).
22. Power to make a rail crossing extinguishment order (section 118A of the Act).
23. Power to make special extinguishment order (section 118B of the Act).
24. Power to divert footpaths, bridleways and restricted byways (section 119 of the Act).
25. Power to make a public path diversion order (sections 119ZA and 119C (4) of the Act).
26. Power to make a rail crossing diversion order (section 119A of the Act).
27. Power to make a special diversion order (section 119B of the Act).
28. Power to require applicant for order to enter into agreement (section 119C(3) of the Act).
29. Power to make an SSSI diversion order (section 119D of the Act).
30. Duty to keep register with respect to applications under sections 118ZA, 118C, 119ZA and 119C of the Act (section 121B of the Act).
31. Power to decline to determine certain applications (section 121C of the Act).
32. Duty to asset and protect the rights of the pubic to use and enjoyment of highways (section 130 of the Act).
33. Duty to serve notice of proposed action in relation to obstruction (section 115E of the Act).
34. Power to apply for variation of order under section 130B of the Act (section 130B(7) of the Act).
35. Power to authorize temporary disturbance of surface of footpath, bridleway or restricted byway (section 135 of the Act).
36. Power to temporarily divert footpath, bridleway or restricted byway (section 135A of the Act).

37. Functions relating to the making good of damage and the removal of obstructions (section 135B of the Act).
38. Powers relating to the removal of things so deposited on highways as to be a nuisance (section 149 of the Act).
39. Power to extinguish certain public rights of way (section 32 of the Acquisition of Land Act 1981 (c.67)).
40. Duty to keep definitive map and statement under review (section 53 of the Wildlife and Countryside Act 1981 (c.69)).
41. Power to include modifications in other orders (section 53A of the Wildlife and Countryside Act 1981).
42. Duty to keep register of prescribed information with respect to applications under section 53(5) of the Wildlife and Countryside Act 1981 (section 53B of the Wildlife and Countryside Act 1981).
43. Power to prepare map and statement (section 57A of the Wildlife and Countryside Act 1981).
44. Power to designate footpath as cycle track (section 3 of the Cycle Tracks Act 1984 (c.38)).
45. Power to extinguish public right of way over land acquired for clearance (section 294 of the Housing Act 1981 (c.68)).
46. Power to enter into agreements with respect to means of access (section 35 of the Countryside and Rights of Way Act 2000 (c.37)).
47. Power to provide access to absence of agreement (section 37 of the Countryside and Rights of Way Act 2000).
48. Power to make limestone pavement order (section 34(2) of the Wildlife and Countryside Act 1981 (c.69)).
49. Power to discharge and acquire from other authorities, functions relating to Definitive Map Modification Orders and Public Path Orders (section 101 of the Local Government Act 1972).

H. OTHER COMMITTEES

H.1 HUMAN RESOURCES COMMITTEE

Terms of Reference

Membership

Eight members of the authority, politically balanced in line with usual proportionality rules.

Overview

The employment and remuneration of the Chief Executive (Head of Paid Service), Executive Directors and Directors. Full Council has delegated to the Committee the power to determine the terms and conditions on which employees hold office including procedures for their dismissal (s.112 Local Government Act 1972) and functions relating to local government pensions (regulations under s.7, 12 and 24 Superannuation Act 1972).

The oversight and scrutiny of the wellbeing, performance and employment practices of the council and its workforce, and the implementation of its equality policies relating to employees.

Functions

A. Full Council has delegated the following functions to the Human Resources Committee to be discharged in accordance with the Officer Employment Procedure Rules:

1. Organisational change affecting Executive Directors and Directors

- a. Consider the workforce implications of any proposal from the Chief Executive to change the organisational structure of the Council where Executive Directors or Directors may be at risk of redundancy.

2. Conduct and capability – Chief Executive, Chief Finance Officer and Monitoring Officer

- a. Consider any allegations/complaints regarding the conduct and/or any capability issues (performance or health) of the Head of Paid Service, Monitoring Officer, Chief Finance Officer, having regard to the model procedures and associated guidance of the Joint Negotiating Committee for Local Authority Chief Executives and Joint Negotiating Committee for Chief Officers. Where necessary, take action, except in relation to dismissal, where the Committee may recommend dismissal to Full Council.
- b. The suspension of the Chief Executive, Monitoring Officer and Chief Finance Officer is delegated to the Chair of the Committee; the suspension of Executive Directors and Directors is delegated to the Chief Executive.

3. Severance Payments – Chief Executive, Executive Directors and Directors

- a. Determine the preferred option(s) for resolution and parameters of any negotiation that may lead to a severance payment to the Chief Executive, Executive Director or Director.

4. Grievances affecting the Chief Executive

- a. Hear and determine any grievance submitted by the Chief Executive provided that it has been referred by the Monitoring Officer.
- b. Hear and determine any grievance submitted by an employee against the Chief Executive where referred by the Monitoring Officer or Director: Workforce and Change.

5. Terms and conditions of employment including remuneration of the Chief Executive, Executive Directors and Directors

- a. Oversight of contracts of employment for the Chief Executive, Executive Directors and Directors employed in accordance with the Joint Negotiating Committee Chief Executives or the Joint Negotiating Committee Chief Officers of Local Authorities.
- b. Setting the terms and conditions of employment for the Chief Executive, Executive Directors and Directors.
- c. Determining any changes to the pay of the Chief Executive during their employment in accordance with the Council's Pay Policy Statement.
- d. Consideration of requests for increases in pay of more than 10% above the minimum of the pay range during employment for Executive Directors and Directors, subject to a recommendation from the Chief Executive and Director: Workforce and Change.
- e. Consider and make recommendations to Full Council in relation to the annual Pay Policy Statement.

B. The Committee oversees and scrutinises the wellbeing, performance and employment practices of the Council, and the implementation of its equality policies relating to the workforce.

1. Safety Health and Wellbeing of the Council's Workforce

- a. Receive the annual report on the safety, health and wellbeing of the Council's workforce.
- b. Monitor the development and implementation of the Council's safety, health and wellbeing plans.
- c. Receive monitoring reports on employee engagement and health and wellbeing

2. Workforce performance reporting

- a. Monitor the development and implementation of the Council's Workforce Strategy.
- b. Receive monitoring reports on workforce diversity, employee engagement, performance management, workforce spend and any changes to HR policies.

3. The implementation of equality policies relating to the workforce.

- a. Receive the Council's annual pay gap reports.
- b. Receive reports on the progress on workforce related actions in the Equality and Inclusion Policy
- c. Receive reports on the work of the staff led groups.

C. Other matters

- a. Consider any matters referred to the Committee by the Chief Executive or Director: Workforce and Change which have significant workforce implications such as changes to terms and conditions of employment.
- b. Hear and determine any collective dispute from trade unions where referred by the Director of Workforce and Change.
- c. Approve the Senior Coroner's salary.
- d. Determine the annual work programme of the Committee.
- e. Produce an annual report to Full Council on the work of the Committee.

H.2 SELECTION COMMITTEE

Terms of Reference - Overview

The role of the committee primarily relates to the appointment and starting remuneration of chief officers and deputy chief officers. Full Council has delegated to the Committee the power to determine the terms and conditions on which employees hold office (s.112 Local Government Act 1972). The Chair, or in their absence, the Vice-chair, of the relevant policy committee will sit on a Selection Committee.

Functions

Full Council has delegated the following functions to the Selection Committee to be discharged in accordance with the Officer Employment Procedure Rules:

1. Make recommendations to Full Council in relation to the appointment of the Head of

Paid Service (s.4 (1) Local Government and Housing Act 1989), Monitoring Officer (s.5(1) Local Government and Housing Act 1989), Chief Finance Officer (s.151 Local Government and Housing Act 1989), Electoral Registration Officer (s.8(2) Representation of the People Act 1983) and Returning Officer for local government elections (s.35 Representation of the People Act 1983).

2. Appoint all other chief officers and deputy chief officers and agree their starting remuneration.
3. Appoint a senior coroner for the Avon coroner area, subject to prior consultation with the other authorities in the coroner area and the separate written consent of the Chief Coroner and the Lord Chancellor.

H.3 APPEALS COMMITTEE

Terms of Reference

Overview

The primary role of the Committee is to consider employee appeals against dismissal. The Committee also takes decisions on renewal and discharge of guardianship under the provisions of the Mental Health Act 1983.

Functions

Full Council has delegated the following functions to the Appeals Committee:

1. Hear and determine any appeal submitted by the Head of Paid Service, Monitoring Officer or Chief Finance Officer in relation to disciplinary action short of dismissal.
2. Hear and determine any appeal against dismissal submitted by employees (except the Head of Paid Service, Monitoring Officer and Chief Finance Officer, where a full Council hearing is required).
3. Hear and determine any grievance appeal submitted by an employee where the grievance is against the Head of Paid Service.
4. Hear and determine any grievance appeal submitted by chief officers or deputy chief officers. (Any grievance appeal submitted by the Head of Paid Service will be heard by full Council).
5. Hear and determine any appeal submitted by chief officers or deputy chief officers regarding the classification of posts and ring-fence arrangements in the Methods of Appointment under the Council's Managing Change Policy.
6. Decide on guardianship discharge or renewal under the Mental Health Act 1983.
7. Decide an appeal against any decision made by or on behalf of the authority, except where another Council body is in place to decide that appeal.

H.4 AUDIT COMMITTEE (AND VALUES AND ETHICS SUB COMMITTEE)

Composition of the Committee

The Audit Committee comprises ten members of the Council and up to two independent members. The independent members are appointed by the committee. The Chair and Vice-Chair of the committee shall be confirmed by the Audit Committee as per committee procedure rules. The Leader, Deputy Leader, Chairs and Vice-chairs of Policy Committees and Party Group Leaders are not eligible to sit on the Audit Committee.

A minimum of three councillor members of the Audit Committee will be present for the meeting to be deemed quorate.

The Committee may not appoint any person as an independent member who is an active member of any political party, defined as any person who engages in political activities which would not be permissible if that person was an officer holding a politically restricted post within the Council. Independent membership may only be made if the person has particular knowledge or expertise in the functions for which the Committee is responsible.

The Committee will meet at least five times a year and will maintain the technical capability to discharge the Audit Committee responsibilities of the Council. The Chair of the Committee may convene additional meetings, as deemed necessary.

The Audit Committee may hold separate meetings with External / Internal Auditors without officer representation. The Committee should hold at last one such meeting annually with External and Internal Auditors.

Objectives or Purpose

1. To provide independent assurance of the adequacy of the risk management framework and the associated control environment, independent scrutiny of the authority's financial and non-financial performance to the extent that it affects governance, the authority's exposure to risk and weakness of the control environment, and to oversee the financial reporting process.
2. To review matters relating to Internal Audit, external audit, risk management, governance, assurance statements, anti-fraud and anti-corruption arrangements.
3. To enhance and promote the profile, status and authority of the Internal Audit function and to demonstrate its independence.
4. To contribute towards making the authority, its committees and departments more responsive to the audit function.
5. To review compliance with the relevant standards, codes of practice and corporate governance policies of the Council.

1. Audit Activity

- 1.1 To approve the Internal Audit Charter and Strategy and monitor its progress.

- 1.2 To approve the Internal Audit annual plan of work and monitor unscheduled work that could potentially divert audit resources away from a plan, and monitor performance against those plans, ensuring that there are no inappropriate scope or resource limitations.
- 1.3 To suggest work for Internal and External Audit.
- 1.4 To consider the Annual Report and opinion of the Head of Internal Audit and a summary of Internal Audit activity and the level of assurance it can give over the Council's corporate governance arrangements prior to approving the Annual Accounts.
- 1.5 To oversee and provide assurance to the Council on the provision of an effective internal audit service and consider the main issues arising from summary Internal Audit reports, and seek assurance that action has been taken where necessary, particularly in areas of high risk.
- 1.6 To consider reports dealing with the management and performance of the Internal Audit function, including the external peer review and reports on the results of the Quality Assurance and Improvement Programme in order to gain assurance on the effectiveness of the Internal Audit function.
- 1.7 To monitor the implementation of agreed actions within reasonable timescales.
- 1.8 To consider the External Auditor's Annual Inspection Letter, relevant reports and the reports to those charged with governance in the process for the approval of the Annual Accounts.
- 1.9 To consider specific reports as agreed with the External Auditor to ensure agreed action is taken within reasonable timescales.
- 1.10 To comment on the scope and depth of the external audit work and to ensure it gives value for money.
- 1.11 To liaise with Public Sector Audit Appointments Limited over the appointment of the Council's External Auditor.
- 1.12 To consider the reports of inspection agencies relevant to the Council.
- 1.13 To undertake an annual review of the effectiveness of the system of Internal Audit.
- 1.14 To oversee the appointment / dismissal of the Chief Internal Auditor.

2. Regulatory Framework

- 2.1 To receive assurance reports on the effectiveness of the Council's Constitution in respect of contract procedure rules, financial regulations, codes of conduct and behaviour and to periodically consider proposed changes to the Constitution in order to make recommendations for amendments to Full Council.

- 2.2 To review any issue referred to it by the Head of Paid Service or Executive Director or any Committee of the Council.
- 2.3 To monitor the effective development and operation of risk management and corporate governance throughout the Council.
- 2.4 To monitor Council policies on whistleblowing and anti-fraud and anti-corruption policies, including the Council's complaints process.
- 2.5 To review the Council's Annual Governance Statement prior to approval, considering whether it properly reflects the risk environment and supporting assurances, and recommend its adoption for publication with the annual accounts, together with associated plans for addressing areas of improvement and advising the Council as appropriate.
- 2.6 To review the arrangements for corporate governance, including the Code of Corporate Governance, to agree necessary actions to ensure compliance with best practice and to recommend to Full Council as appropriate.
- 2.7 To review the Council's framework of assurance, for example Assurance maps, and ensure that it adequately addresses the risks and priorities of the Council.
- 2.8 To review the Council's compliance with its own and published national standards and controls.
- 2.9 To review assurances and assessments on the effectiveness of the Council's arrangements to secure value for money.
- 2.10 To review the assessment of fraud risk and potential harm to the Council from fraud and corruption and to monitor the use of resources to address fraud risk.
- 2.11 To report as appropriate to Full Council on issues which require their attention or further action.

3. Accounts

- 3.1 To approve the annual Statement of Accounts. Specifically to consider whether appropriate accounting policies have been followed and whether there are concerns arising from the financial statements or from the audit that need to be brought to the attention of the Council.
- 3.2 To consider, in the context of approving the Accounts, the External Auditor's report to those charged with the governance issues arising from the audit of the accounts.
- 3.3 To review the Council's Treasury Management Strategy and policies, and make recommendations to Full Council for approval.

4. Risk Management

- 4.1 To consider the effectiveness of the Council's risk management arrangements including reviewing the Risk Management Policy and the Corporate Risk Register.

- 4.2 To provide assurance to the Council, in the Committee's Annual Report, on the effectiveness of risk management arrangements in place.
- 4.3 To seek assurances that action is being taken on risk-related issues.
- 4.4 To be satisfied that the Council's assurance statements, including the Annual Governance Statement, properly reflect the risk environment and any actions required to improve it.

5. Accountability Arrangements

- 5.1 To report to Full Council on an annual basis on assurances received significant control issues, the Committee's performance in relation to the terms of reference and the effectiveness of the Committee in meeting its purpose.

Values and Ethics Sub Committee

The Audit Committee shall appoint a Values and Ethics Sub-Committee

Composition of Values and Ethics Sub-Committee

4 elected members of the Audit Committee (one from each political group represented on the committee), and one independent member, chaired by an independent member.

Terms of Reference for Value and Ethics Sub Committee

To deal with all matters relating to the ethical framework affecting members of the Council under Part 1 Chapter 7 Localism Act 2011 as amended and all other relevant legislation including regulations, directions and guidance. This shall include, but not be limited to:-

1. The promotion of the highest standards of behaviour by members of the Council, including councillors, independent members and co-optees.
2. Advising the Council on the adoption and operation of the Member Code of Conduct, making recommendations for change as the Committee sees fit.
3. Training all members in the operation of the Member Code of Conduct and ensuring it is well publicised both within and outside the Council.
4. The adoption, implementation and maintenance of a procedure for dealing with allegations of breach of the Member Code of Conduct; including monitoring and review and amending it from time to time as the Committee sees fit.
5. Dealing with allegations of Breach of the Member Code of Conduct, where these are referred to them by the Monitoring Officer, and the imposition of sanctions as

appropriate in accordance with the law, the Council's Constitution and relevant procedures adopted by the Council.

6. Consideration of applications for dispensation to allow members to participate in consideration of matters in which they would, but for a dispensation, not be able to participate, in circumstances permitted by law.
7. To adjudicate on any dispute relating to the payment of Members' Allowances or expenses under the Members' Allowances scheme in force from time to time.
8. To review the Council's use of the powers available to it under the Regulation of Investigatory Powers Act 2000.
9. Conferring of Alderman/Alderwoman status and the criteria for such awards.
10. To lead on member development and enhance the role of members as city leaders and community councillors.
11. To review compliance of Councillors in terms of mandatory training.
12. To have oversight of the Register of Members' Interests.
13. All things necessary or in the opinion of the Committee appropriate to fulfil the role and remit of a Values and Ethics Committee as defined by law or the Council's Constitution.

I. STATUTORY COMMITTEES

I.1 LICENSING COMMITTEE

Overview

Functions relating to licensing and gambling as set out below.

Licensing Act 2003 ("the 2003 Act")

1. All those matters relating to the discharge of licensing functions that are referred to that committee by virtue of section 7(1) of the 2003 Act;
2. Functions which, in exercise of its powers under section 7(3) of the 2003 Act, full council has arranged for the Licensing Committee to discharge, namely:
 - (a) Power to grant permission for provision etc of services, amenities, recreation and refreshment facilities on highway and related powers (sections 115E, 115F and 115K of the Highways Act 1980);
 - (b) Power to make an order identifying a place as a designated public place for the

purposes of police powers in relation to alcohol consumption (section 13(2) of the Criminal Justice and Police Act 2001 (c.16));

- (c) Power to make or revoke an order designating a locality as an alcohol disorder zone (section 16 Violent Crime Reduction Act 2006);
- (d) The Council's functions under the third schedule to the Local Government (Miscellaneous Provisions) Act 1982 (as amended); and
- (e) Powers to make and cancel closure notices; make applications for closure orders; issue certificates of termination of closure orders; defend applications for the discharge of closure orders; appeal against the refusal to make closure orders; enforce closure orders or for offences in connection with closure orders (sections 19 to 28 of the Criminal Justice and Police Act 2001);

Gambling Act 2005 ("the 2005 Act")

- 3. All of those functions under Part 8 of the 2005 Act that are delegated to the Committee by virtue of section 154 of the 2005 Act;
- 4. Functions, which, in exercise of its powers under section 101 of the Local Government Act 1972, the full council has arranged for the Licensing Committee to discharge, namely:
 - (a) Duty to comply with requirements to provide information to the Gambling Commission (s.29 of the 2005 Act);
 - (b) Functions relating to exchange of information (s.30 of the 2005 Act);
 - (c) Functions relating to occasional use notice (s.39 of the 2005 Act);
 - (d) Power to designate officer of a licensing authority as an Authorised Person for a purpose relating to premises (section 304 of the 2005 Act);
 - (e) Power to make order disapplying section 279 or 282(1) of the Act in relation to specified premises (s.284 of the 2005 Act);
 - (f) Power to exchange information (section 350 of the 2005 Act);
 - (g) Power to institute criminal proceedings (section 346 of the 2005 Act);
 - (h) Functions relating to the determination of fees for premises licenses (the Gambling (Premises License Fees) (England and Wales) Regulations 2007 (S.I. 2007/479));
 - (i) Functions relating to the registration and regulation of small society lotteries (Part 5 of Sch 11 to the 2005 Act);

Business and Planning Act 2020

- 5. Functions relating to pavement licences (sections 1 to 7 of the 2020 Act).

Code of Conduct

The Constitution contains a supplement to the members' code of conduct which deals with the role of elected members in relation to licensing committee hearings (see part 5 of the constitution).

I.2 HEALTH AND WELLBEING BOARD

Arrangements

The Membership of the Board shall be as follows:

- a. at least one elected member, to be appointed by the Full Council; the Board will be chaired by the relevant Policy Committee Chair.
- b. the director of adult social services.
- c. the director of children's services.
- d. the director of public health.
- e. a representative of the Local Healthwatch.
- f. a representative of the Integrated Care Board.
- g. the Bristol Locality Director and
- h. such other persons, or their representatives as deemed appropriate by a majority of the Board, including from local NHS organisations, the community and voluntary sector and from underrepresented groups.
- i. The political requirements set out in sections 15, 16 and schedule 1 of the Local Government and Housing Act 1989 shall not apply to the membership of the Board.

Schedule of meetings

The Board will formally meet with such frequency as it shall determine.

Voting

1. The Health and Wellbeing Board will be a committee of the Local Authority.
2. All members of the Health and Wellbeing Board will have voting rights.
3. If the Health and Wellbeing Board appoints additional members to the Board, the Board itself will determine whether those members will have voting rights.

Functions

The function of the board will be to:

Publish a local Strategic Needs Assessment and Strategy

- a. assess the needs of the local community through the Joint Strategic Needs Assessment (JSNA) and consider the need or likely need capable of being met or affected by Local Authority or Integrated Care System functions;
- b. agree and produce a Health and Wellbeing Strategy that addresses need and which commissioners will need to take into account when they develop plans for health care, social care and public health;
- c. involve Healthwatch and people living and working in Bristol in the preparation of the JSNA and Joint Health and Wellbeing Strategy (JHWS);
- d. have regard to the NHS Commissioning Board mandate and statutory guidance in the preparation of the JSNA and JHWS;
- e. be involved in the process of developing and signing-off the Integrated Care System strategy and related plans;
- f. assess and provide an opinion on whether the Integrated Care System strategy has taken proper account of the JSNA and JHWS;
- g. assess and provide an opinion on how well the Integrated Care System strategy has contributed to the delivery of the JHWS.

Promote, encourage and assure integrated service provision

- h. encourage integrated working between commissioners of NHS, public health and social care services to improve the health and wellbeing of the local community based on need;
- i. encourage integrated working between commissioners of NHS, public health and social care services to improve the health and wellbeing of the local community;
- j. encourage organisations who arrange for the provision of any health-related services to work closely with the Health and Wellbeing Board to improve the health and wellbeing of the local community;
- k. encourage organisations who arrange for the provision of services related to the wider determinants of health, such as housing or transport, to work closely with commissioners of health and social care;

Publish a Pharmaceutical Needs assessment

- l. Publish a Pharmaceutical Needs Assessment every three years; consider the suitability of current Pharmaceutical Needs Assessments (PNA) and prepare a statement of the needs for pharmaceutical services of the local population;
- m. provide such advice, assistance or other support as it thinks appropriate for the

purpose of encouraging the making of arrangements under section 75 of the National Health Service Act 2006 in connection with the provision of such services;

Improve Health and reduce health inequality

- n. The Board and all board members will be champions of health and wellbeing and will work collectively and take all necessary action to improve health and reduce health inequality
- o. The Chair or deputy will represent the Bristol HWBB on the Integrated Care Partnership (ICP).
- p. The Chair of the ICP will rotate annually between the three local authorities of Bristol, South Gloucestershire and North Somerset.
- q. The Health and Wellbeing Board will function as one of the partnerships of the Bristol One City Partnership.

The HWWB will support, advise and work with other One City partnerships and partners to address health and well-being benefits through their activities

Code of Conduct and Declarations of interest

All members of the Board will be bound by the Council's code of conduct for members and will complete the Register of Interests.